

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

JANIS F. FOSTER
900 Pat Lane
Huntingtown, Maryland 20639

Plaintiff

vs.

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Civil Action No.: _____

JOHN J. COALSON, JR.
3407 Jermantown Road
Fairfax, Virginia 22030

Defendant

COMPLAINT

PLAINTIFF, Janis F. Foster, by and through counsel, John P. Valente, III, Thomas V. Mike Miller, Jr., P.A., sues Defendant, John J. Coalson, Jr., and in support states:

PARTIES

1. That Plaintiff, Janis F. Foster, is an adult citizen of the United States and of the State of Maryland, and currently resides in Huntingtown, Calvert County, Maryland.

2. That Defendant, John J. Coalson, Jr., is an adult citizen of the United States and of the State of Virginia, and currently resides in Fairfax, Fairfax County, Virginia.

JURISDICTION AND VENUE

3. That this Honorable Court has jurisdiction over this case, pursuant to 28 USCS, Section 1332, as the matter in controversy exceeds the value of Seventy Five and 00/100 Dollars (\$75,000), exclusive of interest and costs, and is between citizens of two (2) different states.

4. That the venue is proper before this Honorable Court, pursuant to 28 USCS, Section 1391, as a substantial part of the events and omissions giving rise to this claim occurred in the District of Columbia.

**COUNT I
(Negligence)**

5. That Plaintiff hereby repeats and realleges as though set forth fully herein, the allegations contained in paragraphs one (1) through four (4) of this Complaint.

6. That on or about August 20, 2003, at approximately 1:30 p.m., the Plaintiff, Janis

F. Foster, was traveling southbound on Interstate 295 in Southeast Washington, D.C., when she brought her 2003 Honda CRV motor vehicle to a complete stop for traffic.

7. That at the same time and place, the Defendant, John J. Coalson, Jr., who was operating a 2003 Dodge Ram motor vehicle in a position in back of the Plaintiff's motor vehicle on Interstate 295, negligently drove his motor vehicle into the rear-end of the Plaintiff's motor vehicle, thereby causing a violent collision.

8. That at all times relevant herein, the Defendant, John J. Coalson, Jr., had a duty to maintain a proper lookout, to exercise due care in the operation of his 2003 Dodge Ram motor vehicle, to operate his vehicle in a safe and prudent manner, to drive at a speed in accordance with all prevailing road and/or traffic conditions, to follow at a safe and reasonable distance behind Plaintiff's motor vehicle, to reduce the speed of his vehicle to avoid a collision, to maintain control over his 2003 Dodge Ram motor vehicle at all times so as to avoid striking Plaintiff's motor vehicle, to drive in accordance with all prevailing District of Columbia traffic rules and regulations, and otherwise to pay full time and attention to the operation of his 2003 Dodge Ram motor vehicle.

9. That the Defendant, John J. Coalson, Jr., breached his aforementioned duties owed to Plaintiff, Janis F. Foster, in failing to maintain a proper lookout, in failing to exercise due care in the operation of his 2003 Dodge Ram motor vehicle, in failing to operate his vehicle in a safe and prudent manner, in failing to drive at a speed in accordance with all prevailing road and/or traffic conditions, in failing to follow at a safe and reasonable distance behind Plaintiff's motor vehicle, in failing to reduce the speed of his motor vehicle to avoid a collision, in failing to maintain control over his 2003 Dodge Ram motor vehicle at all times so as to avoid striking Plaintiff's vehicle, in failing to drive in accordance with all prevailing District of Columbia traffic rules and regulations, and otherwise in failing to pay full time and attention to the operation of his 2003 Dodge Ram motor vehicle.

10. That as a direct and proximate result of the negligent actions of the Defendant, John J. Coalson, Jr., the Plaintiff, Janis F. Foster, received severe, painful and permanent injuries to her body, as well as severe and protracted shock to her nervous system, all of which has caused and will continue to cause her great pain and mental anguish.

11. That as a direct and proximate result of the negligent actions of the Defendant, John J. Coalson, Jr., the Plaintiff, Janis F. Foster, has been forced to expend and will continue to expend in the future, large sums of money for hospitalization, x-rays, doctors, nurses, medical treatment, and medications for the treatment of the aforementioned injuries to the Plaintiff, Janis F. Foster.

12. That as a direct and proximate result of the negligent actions of the Defendant, John J. Coalson, Jr., the Plaintiff, Janis F. Foster, was forced to lose time from her employment, suffered a loss of wages, and suffered a permanent impairment of her wage earning capacity.

13. That at no time relevant hereto was the Plaintiff, Janis F. Foster, contributorily

negligent nor did she assume the risk.

WHEREFORE, the Plaintiff, Janis F. Foster, seeks judgment against the Defendant, John J. Coalson, Jr., for the sum of Five Million and 00/100 Dollars (\$5,000,000.00), plus interest and costs.

Respectfully submitted:

THOMAS V. MIKE MILLER, JR., P.A.

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Counsel for Plaintiff

JURY DEMAND

Plaintiff demands a trial by jury in the above-captioned matter.

John P. Valente, III